CHIEF SURVEYOR'S COPY



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Land Survey Regulations 1982

Legal Notice No. 50 of 1982

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LEGAL NOTICE NO. 50 OF 1982

Land Survey Regulations 1982

In exercise of the powers conferred by section 25 of the Land Survey Act 1980, I,

Nehemia Sekhonyana 'Maseribane

Minister of Interior make the following regulations —

Citation

1. These regulations may be cited as the Land Survey Regulations 1982.

Interpretation

2. In these regulations —
"Survey Technician" means an assistant carrying out technical duties under the direction and control of a surveyor.

General directions

3. The Chief Surveyor may issue directions to surveyors —

(a) prescribing the manner in which surveys are to be made; the records to be kept and the manner of keeping the same;

(b) prescribing the manner in which survey marks including corner marks delineating boundaries of Land shall be positioned, implanted, erected and constructed;

(c) prescribing the units of measurements, the system of survey co-ordinates and the survey projection to be used in Lesotho;

(d) regarding plans, their preparation and the matters to be shown thereon;

(e) regarding the publication, service and form of notices issued or served by surveyors;

(f) prescribing the returns to be made by surveyors to the Chief Surveyor;

(g) requiring surveyors to report to the Chief Surveyor matters connected with surveys on which they are engaged or with previous surveys, ascertained by them during the course of their work;

(h) for securing the maintenance of survey marks in their correct position and the preservation of the same;

(i) providing for the checking of survey during the course of surveying;

(j) providing for the checking of tapes and measuring bands and instruments used by surveyors, and

(k) regulating the method and type of survey computations.

Survey to accord with all requirements

4. (1) Before submitting any survey to the Chief Surveyor a Surveyor shall ensure that such survey shall accord with any conditions or specifications which may have been laid down under the provisions of any law relating to the land under survey.

(2) Submission of any such survey to the Chief Surveyor in contravention to regulation 4(1) shall constitute professional misconduct.

Employment of Survey technicians

5. (1) No licensed surveyor shall employ a survey technician without the written approval of the Board but the Chief Surveyor may give provisional approval pending decision by the Board.

(2) When the approval is given it shall be for a period of not more than two years in the first instance and may thereafter be renewed for further periods at the discretion of the Board.

(3) The work done by the technician shall be under the direct personal control of the licensed surveyor who shall himself carry out sufficient checks to ensure that the work is correct and shall accept full personal responsibility for all work performed by this survey technician.

(4) In applying for the Board's approval the licensed surveyor shall supply to the Board a certificate in the form as prescribed in the first schedule.

(5) If the Chief Surveyor finds that work done by a survey technician appears not to have been adequately supervised and checked by the licensed surveyor he shall report the matter to the Board whose decision on whether professional misconduct has occured shall be final.

Fees for the grant of a licence

6. A fee as prescribed in the second schedule is payable in respect of a grant of a licence to practice land surveying

Fees chargeable by the Chief Surveyor

7. (1) The Chief Surveyor shall charge fees for all public surveys in accordance with the charges prescribed in the third schedule.

(2) The Chief Surveyor shall charge fees prescribed in the fourth schedule for the authentication of plans and surveys.

(3) The Chief Surveyor shall charge fees in respect of all documents issued by or services rendered by Government in accordance with the charges prescribed in the fifth schedule.

Fees for licence surveyors

8. (1) A licensed surveyor is entitled to negotiate survey fees and expenses directly with a client to their mutual agreement prior to the survey provided that the surveyor gives the client before or during the negotiation a reasonable estimate of the fee the Chief Surveyor is expected to charge in accordance with the third schedule.

(2) A prospective client or a surveyor may apply to the Chief Surveyor for an estimate or verification of the calculation of a fee according to the third schedule and such a request shall not be unreasonably refused.

(3) In the event of a dispute between a surveyor and his client as to fees to be charged, the surveyor shall advise his client that on failure to be resolved by mutual agreement the dispute shall be referred to the Board.

Trigonometrical stations and reference marks to be repaired

9. (1) Every surveyor engaged on a public survey who discovers any trigonometrical station or reference mark to be damaged or in need of repair shall carry out such repair if practicable and shall report the matter to the Chief Surveyor.

(2) A licensed surveyor not engaged on a public survey is not required to repair any damaged trigonometrical station or reference mark but he shall report in writing to the Chief Surveyor the name, number and position of any such station or mark and the nature of the damage he has observed.

(3) Failure to report as specified in regulation 9 (1) & (2) shall be considered to be professional misconduct.

10. (1) A person shall have access during normal working office hours free of charge to every published map and plan in the possession of the Chief Surveyor but the Chief Surveyor or his representative may in the public interest withdraw a map or plan from such access. Public access to maps and plans

(2) A search fee of one loti per plan shall be paid in advance by a person not being a licensed surveyor or public service officer for access to an unpublished plan and such search fee shall be credited against the price of a print of a plan purchased at the time of search.

N. S. 'Maseribane
Minister of the Interior.

FIRST SCHEDULE

FORM A

CERTIFICATE

I certify that all the work performed in the field and in the office by my survey technician

.....

NAME OF SURVEY TECHNICIAN

will be carried out under my personal direction and I take full responsibility for all work so performed.

Date .....

Signature .....

Licensed Surveyor

SECOND SCHEDULE

The fee payable on the grant of a licence to practice Land Surveying is twenty - five Maloti.

THIRD SCHEDULE

FEES PAYABLE FOR SURVEYS MADE BY THE CHIEF SURVEYOR.

1. The base rate referred to in this schedule shall be ~~one~~ Loti.

2. (1) For a survey for **General Title* purposes the fee shall be calculated as follows:

(a) For every metre of boundary measured or calculated from measurements in the survey a fee of one quarter of the base rate and

(b) For every survey beacon placed by or under the direction of the surveyor a fee of five times the base rate.

(2) The cost of beacon material may be charged extra.

3. When two or more plots are included in the same survey the fee for each plot shall be reduced by half the rate in 2 above for every part of the boundary shared and for every beacon shared with one or more adjoining plots surveyed at the same time.

4. When the total fee for one plot calculated according to 1, 2, and 3 above is less than M20. the fee shall be M20.

5. The cost of completion of all plans and documents required by the Chief Surveyor and the cost of showing on one occasion only the boundary and the corner beacons to the person who pays the fee (or his agent) shall be deemed to be included in the fee calculated above.

6. For surveys of subdivisions of plots the fee shall be as follows:

(a) when subdivision is carried out at the same time as the survey of the plot to be subdivided the fee shall be the total of the fees calculated for each subdivision separately according to 1 to 3 above and no additional charge shall be made for the survey of the whole plot as a unit.

(b) When subdivision is carried out after the survey of the plot to be subdivided the fee shall be charged separately, and shall be one quarter of the base rate per metre of the newly surveyed boundary which shall include any part of the original boundary which has to be re-measured to locate any subdivisional beacon plus five times the base — rate for each subdivisional beacon placed. The cost of beacon materials may be charged extra.

(c) When the total fee for a subdivision survey calculated according to 6(a) & (b) above is less than M20. the fee shall be M20.

(d) The fee for a subdivisional survey is payable by the title holder of the plot being subdivided.

7. For a surveyor to visit a plot for the purpose of

(a) pointing out boundaries of beacons again;

(b) replacing missing corner marks or beacons; and

(c) verifying that any fence or other feature not indicated on the authenticated survey of a plot is suitable as a general boundary. The fee is ten Maloti plus five times the base — rate for each corner mark or beacon necessarily replaced. The fee includes providing any certificate or other document required by the Chief Surveyor but does not include the cost of fence posts or other materials used in the construction of any beacon or replaced. If insufficient surviving beacons can be found or if the work involved so warrants the Chief Surveyor may decide that fees for a new survey shall apply.

8. For a survey to fix a boundary carried out under regulation 16 of the Land Regulations 1980 charges will be assessed by the Chief Surveyor and shall be paid by the applicant in accordance with sub-regulation (5) of the same Land Regulation 16.

9. In addition to the above fees the Chief Surveyor may at his discretion recover travelling expenses and accomodation costs from the person liable to pay the fees provided that person is given notice of the Chief Surveyor's intention so to do in time for the request for survey to be withdrawn if the intended charges are not acceptable. Such extra charges will not be made for surveys carried out under the provisions of sections 30 and 31 of the Land Act 1979.

10. For any service not specified in this schedule which on request the Cheif Surveyor may decide he has the capacity to provide, he may recover whatever costs he estimates to have been incurred plus a levy of up to twenty-five percentum of those costs.

11. Any of the fees calculated according to the provisions of this schedule may be amended to the nearest whole number of Maloti above or below the amount so calculated or estimated.

* A General Title Survey means a survey for title purposes, providing sufficient information to identify, without reasonable doubt, the properly maintained boundaries of the land surveyed. Surveyors shall be guided by the Chief Surveyor's General Directions on what is required and how it is to be presented.

FOURTH SCHEDULE

FEES PAYABLE TO THE CHIEF SURVEYOR FOR THE AUTHENTICATION OF EVERY SURVEY AND PLAN MADE BY A LICENSED SURVEYOR.

1. For each survey a general examination fee calculated as one per centum of the total survey fees calculated according to the scale of charges for surveys as prescribed in the Third Schedule to these regulations.

2. One half of the fees listed above will be charged for the examination of any compiled plan.

3. For any other matter not covered above, a charge equal to the estimated cost to the Chief Surveyor plus a levy of up to twenty-five per centum of the estimated cost.

4. The minimum fee to be paid by a licensed surveyor under this schedule shall be five Maloti.

FIFTH SCHEDULE

FEES PAYABLE TO THE CHIEF SURVEYOR FOR DOCUMENTS AND OTHER SERVICES RENDERED BY HIM.

1. For the supply of survey plans on dyeline paper one Loti per print.

2. For the supply of photo-copies of survey plans, field notes, calculations and other small size documents, twenty lisente per sheet with a minimum charge of one Loti.

3. For the supply of survey information to a licensed surveyor in accordance with section 15(2) and (3) of the Act the fee shall be one Loti.

4. For the provision of special plans, maps or the issue of any special documents not listed in this schedule, a production charge may be payable, equating to the estimated cost to the Chief Surveyor plus a levy of up to twenty-five per centum of that cost over and above the fees specified above.

N. S. 'Maseribane
Minister of the Interior.

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